Brazoria County District Court

Cause No. 2024-CV-0038

James Castillo, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-30-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant specifically denies that Defendant was negligent, that any negligence on the part of Defendant proximately caused the occurrence or the injuries alleged, and that Plaintiff is entitled to the damages sought.

Subject to and without waiving the foregoing denials, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligence, including failure to keep a proper lookout, failure to yield the right of way, and operating a vehicle at an unsafe speed, proximately caused or contributed to the occurrence, and under Chapter 33 of the Texas Civil Practice and Remedies Code Plaintiff's recovery, if any, must be reduced by Plaintiff's percentage of responsibility. Second, the occurrence was caused by the sole proximate negligence of a person or entity other than Defendant, and Defnedant requests that the trier of fact designate such responsible third party. Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by incurring medical expenses that were not reasonable or necessary.